

		Cal.App.4th 894, 907, states that a party's entry into a contract with an out-of-state party does not automatically demonstrate purposeful availment in the other party's home forum, particularly where the agreements were governed by out-of-state law." Moreover, Nicholes' assertion that ActBlue "solicited donations" from her is vague and not supported by any documentary evidence. First, plaintiffs do not describe which of the four defendants solicited donations. Second, plaintiffs provide no detail as to the actual solicitation. For example, Nicholes does not give one factual example as to when or in what form ActBlue solicited a donation from her for a specific charity. "Declarations are insufficient to support the assertions for which they are offered if they consist primarily of vague assertions of ultimate facts rather than specific evidentiary facts permitting a court to form an independent conclusion on the issue." <i>Jewish Def. Org., Inc. v. Superior Ct.</i> (1999) 72 Cal. App. 4th 1045, 1055. Based on the evidence submitted, Plaintiffs have not met their burden to establish that the four defendants purposely availed themselves of forum benefits. Accordingly, the motion is GRANTED and the complaint is DISMISSED, without prejudice, as to the four ActBlue defendants. <u>DEMURRER:</u> In light of the ruling on the motion to quash, the demurrer by ActBlue is MOOT. The case management conference set for today is OFF-CALENDAR. ActBlue shall give notice.
10	Mahgerefteh v. Garza	Before the Court are the following five motions filed by plaintiff/cross-defendant Nasser Mahgerefteh (Plaintiff) against defendant/cross-complainant Steven Anthony Garza (Defendant): 1) motion to compel further responses to special interrogatories, set one; 2) motion to compel further responses to form interrogatories, set one; 3) motion to compel further responses to requests for production of documents, set one (RFPs); 4) motion to compel further responses to requests for admission, set one (RFAs); and 5) motion to proffer evidence. For the reasons set forth below, the motions to compel further responses to special interrogatories, RFPs and RFAs are DENIED; the motion to compel further responses to form interrogatories is GRANTED as to nos. 4.1, 6.4 to 6.7, 7.1(d), 9.1(c), (d) and 16.2 (a)(b)(c) and is otherwise DENIED; and the motion to proffer evidence is DENIED. Where responses to interrogatories, document demands and/or requests for admission have been timely served but are deemed deficient by the requesting party (e.g., the response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general), that party may file a motion to compel further responses. (Code of Civ. Proc. § 2030.300, subd. (a), § 2031.310, subd. (a), § 2033.290, subd. (a).) Unless the motion is served within 45 days after service of verified responses (extended two court days if served electronically) the requesting party waives any

right to compel further responses. (Code of Civ. Proc. § 2030.300, subd. (c), § 2031.310, subd. (c), § 2033.290, subd. (c), § 1010.6, subd. (a)(3).) The motion must be accompanied by a separate statement, and a meet and confer declaration. (Cal. Rules of Court, rule 3.1345(a),(c); Code of Civ. Proc. § 2030.300, subd. (b)(2), § 2031.310, subd. (b)(2), § 2033.290, subd. (b)(2).)

Motion to Compel re: Special Interrogatories: The motion was timely filed and served. However, Plaintiff's meet and confer efforts were insufficient and the separate statement fails to comply with California Rules of Court, rule 3.1345. Moreover, the responses are generally code-compliant and responsive to the interrogatories asked, some of which are uncertain and unintelligible. With regard to interrogatories relating to medical treatment and medical bills for Defendant's injuries, these interrogatories are duplicative of the form interrogatories and/or the information can be obtained through subpoena of Defendant's medical records. With regard to interrogatories relating to injuries Defendant's parents suffered, the information sought is not relevant because his parents are not named as plaintiffs and/or invade their right to medical privacy. The motion is therefore DENIED.

Motion to Compel re: Form Interrogatories: The Court notes that Plaintiff's meet and confer efforts were insufficient and the separate statement fails to comply with California Rules of Court, rule 3.1345. To the extent the dispute is discernable, the Court finds the answers deficient, evasive or incomplete as to nos. 4.1, 6.4 to 6.7, subpart (d) of 7.1, subparts (c) and (d) of 9.1 and (a), (b) and (c) of 16.2, and the motion is therefore GRANTED as to these interrogatories. All other responses are sufficient and code-compliant. Defendant shall provide further verified responses within 30 days. Given the failure to properly meet and confer, procedural defects with the motion and mixed ruling by the Court, Plaintiff's request for sanctions is DENIED.

Motion to Compel re: RFPs: The motion was timely filed and served, but the meet and confer efforts were insufficient. More importantly, Plaintiff failed to provide any separate statement at all with this motion. (Cal. Rules of Court, rule 3.1345(a),(c).) Furthermore, Defendant attached a copy of his verified responses to RFPs to the opposition that differ from the verified responses attached to the motion. (Compare ROA 280 with ROA 432.) To the extent they are supplemental responses, the motion is moot. The Court is otherwise unable to determine what RFPs are in dispute. The motion is therefore DENIED.

Motion to Compel re: RFAs: To the extent Plaintiff seeks to deem matters admitted, the motion fails because Plaintiff concedes verified responses have been provided. (Code of Civ. Proc. § 2033.280(c)[motion to deem truth of matters specified in RFAs must be granted except if the responding party provides responses in "substantial compliance with Section 2033.220"].) The Court finds the responses are substantially code-compliant. To the extent Plaintiff seeks further responses, the meet and confer efforts were insufficient and Plaintiff failed to submit any separate statement at

		all with this motion. In addition, it appears Plaintiff seeks responses to form interrogatory no. 17.1 for each of Defendant's denials to the RFAs, but there is no evidence Plaintiff ever served form interrogatory no. 17.1. The motion is therefore DENIED. <u>Motion to Proffer Evidence</u>: This motion is a procedurally improper motion for reconsideration of the Court's July 7, 2025 ruling granting Defendant's discovery motions. A motion for reconsideration must be brought within 10 days after service of written notice of entry of the order and must be "based upon new or different facts, circumstances, or law" than those before the court at the time of the original ruling. (Code of Civ. Proc. § 1008, subd. (a).) Here, the motion is untimely and fails to identify any new or different facts, circumstances or law than those before the Court at the time of the order. The motion is therefore DENIED. Counsel for Defendant shall give notice of this ruling.
11	Southwest Voter Registration Education Project v. City of Huntington Beach	O/C
12	Kwok v. Genera Corporation	Before the Court is a Motion to Charge Members' Interests in Limited Liability Companies by defendant/judgment creditor Genera Corporation (Judgment Creditor). The motion is GRANTED, as set forth herein. On 12/2/25, a judgment after jury trial was entered awarding damages in favor of Judgment Creditor and against plaintiffs/judgment debtors Jackson Kwok and Annie Wong (collectively, Judgment Debtors), jointly and severally, in the amount of \$14,271,611.96. (ROA 820) The judgment also reflects an additional \$1,345,000 being awarded separately against Annie Wong. (ROA 820) On 3/10/26, an amended judgment was entered awarding costs and expert fees to Judgment Creditor in the amounts of \$262,540.91 and 360,715.50 respectively. (ROA 1057) Judgment Creditor seeks an order charging the membership interests of plaintiffs/judgment debtors Jackson Kwok and Annie Wong (collectively, Judgment Debtors) in two limited liability companies with payment of the unpaid balance of the judgment as reflected in ROA 1057. The amount of the judgment entered is not disputed. The two entities are: (1) Singgong LLC and (2) Cat & Mouse Investments, LLC (collectively, LLC's). To reach a partnership or LLC interests, the judgment creditor ordinarily must obtain a court order charging those interests with the amount of the judgment. (Code Civ. Proc., §708.320; <i>Evans v. Galardi</i> (1976) 16 Cal.3d 300, 310.) Corporations Code section 17705.03 states "on application by a judgment creditor of a member or transferee, a court may enter a charging order against the transferable interest of the judgment debtor for the unsatisfied amount of the judgment." (Corp. Code, § 17705.03(a).)